

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

★ JAN 28 2010 ★

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IMEEK BANKS AND SHAMELL WITHERSPOON,

BROOKLYN OFFICE

Plaintiffs, ECF CASE

-against-

CV 10 - 0382

THE CITY OF NEW YORK, POLICE OFFICER LORNE
KANOVER, SHIELD # 25987, UNDERCOVER POLICE
OFFICER #C0103, JOHN DOE ##1-6,

COMPLAINT AND
JURY DEMAND

J. ORENSTEIN, M.J.

Defendants.

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AMON, J.

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiffs seek relief for the violation of their rights secured by 42 USC §1983, the Fourth and Fourteenth Amendments to the United States Constitution, and the laws and Constitution of the State of New York.

2. The claims arise from a December 4, 2008 incident in which officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiffs to, inter alia, false arrest, assault, battery, false imprisonment and malicious prosecution.

3. Plaintiffs seek monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action is brought pursuant to 28 USC §1331, 42 USC §1983, §1988 and the Fourth and Fourteenth Amendments to the United States Constitution. Pendent party jurisdiction

and supplementary jurisdiction over plaintiff's state law claims is asserted.

5. The amount in controversy exceeds \$75,000.00 excluding interest and costs.

6. Venue is laid within the United States District Court for the Southern District of New York in that Defendant City of New York is located within and a substantial part of the events giving rise to the claim occurred within the boundaries of the Southern District of New York.

PARTIES

7. Plaintiffs are citizens of the United States and at all times here relevant resided in Bronx County, City and State of New York.

8. The City of New York is a municipal corporation organized under the laws of the State of New York.

11. The individually named and John Doe officers ("the officers") at all times here relevant were members of the New York City Police Department, and are sued in their individual and official capacities.

12. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

NOTICE OF CLAIM

13. Within 90 days of the events giving rise to this claim, plaintiffs filed written notices of claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of that notice, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

14. On December 4, 2008, at approximately 9:35 a.m., plaintiffs were in the vicinity

of 721 Willoughby Avenue, Brooklyn, NY when police officers stopped, searched, and falsely arrested them. They were maliciously charged and prosecuted for criminal possession and criminal sale of a controlled substance. All charges were dismissed.

15. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against plaintiff.

16. During all of the events above described, defendants acted maliciously and with intent to injure plaintiff.

17. As a direct and proximate result of the acts of defendants, plaintiffs suffered the following injuries and damages:

- a. Violation of their rights pursuant to the Fourth Amendments to the United States Constitution to be free from an unreasonable search and seizure of his person;
- b. Violation of his New York State constitutional rights under Article 1, Section 12 to be free from an unreasonable search and seizure;
- c. Violation of their rights to Due Process of Law pursuant to Article 1, Section 6 of the New York State Constitution and the Fourteenth Amendment to the United States Constitution;
- d. Pain and suffering;
- e. Emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, and anxiety;
- f. Loss of liberty;

g. Attorney's and court fees.

**FIRST CAUSE OF ACTION
(ASSAULT)**

18. The preceding paragraphs are here incorporated by reference.

19. Upon approaching plaintiffs, defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

20. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under common law, 42 USC §§1983 and 1985 and the New York State Constitution.

21. Each plaintiff was damaged by defendants' assault.

**SECOND CAUSE OF ACTION
(BATTERY)**

22. The preceding paragraphs are here incorporated by reference.

23. Defendants engaged in and subjected plaintiffs to immediate harmful and/or offensive touching and battered him.

24. Defendants used excessive and unnecessary force with plaintiffs.

25. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under common law, 42 USC §§1983 and 1985 and the New York State Constitution.

26. Each plaintiff was damaged by the battery of the defendants.

**THIRD CAUSE OF ACTION
(FALSE ARREST AND ILLEGAL IMPRISONMENT)**

27. The preceding paragraphs are here incorporated by reference.

28. Defendants subjected plaintiffs to false arrest, false imprisonment, and

deprivation of liberty without probable cause.

29. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under 42 USC §§1983 and 1985 and the New York State Constitution.

30. As a result of the false arrest, imprisonment, deprivation of liberty, and strip search, each plaintiff was damaged.

**FOURTH CAUSE OF ACTION
(MALICIOUS PROSECUTION)**

31. The preceding paragraphs are here incorporated by reference.

32. Defendants, acting with malice, initiated a prosecution against plaintiff and caused him to be prosecuted.

33. The criminal proceedings were terminated favorably to defendant.

34. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC §1983, New York State common law, and the New York State Constitution.

35. As a result of the malicious prosecution, each plaintiff was damaged.

**FIFTH CAUSE OF ACTION
(RESPONDEAT SUPERIOR)**

36. The preceding paragraphs are here incorporated by reference.

37. Defendant police officers' intentional tortious acts were undertaken within the scope of their employment by defendant City of New York and in furtherance of the defendant City of New York's interest.

38. As a result of Defendant police officer's tortious conduct in the course of their employment and in furtherance of the business of defendant City of New York, each plaintiff

was damaged.

**SIXTH CAUSE OF ACTION
(CONSTITUTIONAL TORT)**

39. All preceding paragraphs are here incorporated by reference.

40. Defendants, acting under color of law, violated plaintiffs' rights pursuant to §§6 and 12 of the New York State Constitution.

41. A damages remedy here is necessary to effectuate the purposes of §§6 and 12 of the New York State Constitution, and appropriate to ensure full realization of plaintiffs' rights under those sections.

42. As a result of defendants' tortious conduct, each plaintiff was damaged.

**SEVENTH CAUSE OF ACTION
(MUNICIPAL AND SUPERVISORY LIABILITY)**

43. The preceding paragraphs are here incorporated by reference.

44. The City, the Commissioner and the Inspector are liable for the damages suffered by plaintiffs as a result of the conduct of their employees, agents, and servants and the others whose names are currently unknown.

45. The City, the Commissioner and the Inspector knew or should have known of their employees', agents, or servants' propensity to engage in the illegal and wrongful acts detailed above.

46. The aforesaid event was not an isolated incident. The City, the Commissioner and the Inspector have been aware for some time (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board) that many of their police officers are insufficiently trained on the prerequisites to entering an apartment and the safeguards necessary in lawfully obtaining a warrant and the observations required to support probable cause. The

City, the Commissioner and the Inspector fail to discipline officers not reporting fellow officers' misconduct that they've observed, and they fail to discipline officers for making false statements to disciplinary agencies. Additionally, the City, Commissioner and Inspector have completely isolated their law department from the discipline of police officers, so that civil suits against police officers for actions taken in their capacity as police officers have absolutely no impact on the officers' careers, regardless of the outcome of the civil actions. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate the plaintiff's civil rights, without fear of reprisal.

47. The City, the Commissioner and the Inspector knew or should have known that the officers who caused plaintiff injury had a propensity for the type of conduct that took place in this case. Nevertheless, the City, the Commissioner and Inspector failed to take corrective action.

48. The City the Inspector and the Commissioner have failed to take the steps to discipline, train, supervise or otherwise correct the improper, illegal conduct of the individual defendants in this and in similar cases involving misconduct.

49. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of New York City to the constitutional rights of persons within New York City, and were the cause of the violations of plaintiffs' rights here alleged.

50. Defendants City of New York, the Commissioner and the Inspector have damaged plaintiffs by their failure to properly train, supervise, discipline, review, remove, or correct the illegal and improper acts of their employees, agents or servants in this and in similar cases involving police misconduct.

51. Plaintiffs have been damaged as a result of the wrongful, negligent and illegal acts of the City and the Commissioner.

EIGHTH CAUSE OF ACTION

(42 USC §§1981, 1983)

52. The preceding paragraphs are here incorporated by reference.

53. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights under color of law and have conspired to deprive them of such rights and are liable to plaintiff under 42 USC §§1981, 1983 and the New York State Constitution.

54. Defendants' conduct deprived plaintiffs of their right to be free of unreasonable searches and seizures, pursuant to the Fourth Amendments to the United States Constitution, in that the seizure of plaintiffs and search of their home was without probable cause and with excessive force. Defendants' conduct further deprived plaintiffs of Due Process of Law, pursuant to the 14th Amendment to the United States Constitution, in that plaintiffs were subjected to arrest without due process of law.

55. Plaintiffs have been damaged as a result of defendants' wrongful acts.

WHEREFORE, plaintiffs demand judgment against the defendants, jointly and severally, as follows:

A. In favor of each plaintiff in an amount to be determined by a jury for each of plaintiffs' Causes of Action;

B. Awarding each plaintiff punitive damages in an amount to be determined by a jury for each of plaintiffs' Causes of Action;

C. Awarding plaintiffs reasonable attorneys' fees, costs and disbursements of this action; and

D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiffs demand a trial by jury.

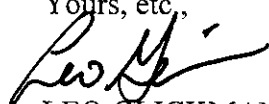
DATED: Brooklyn, New York
January 26, 2010

TO: New York City
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Police Officer Lorne Kanover
Narcotics Borough Brooklyn North

Undercover Police Officer C0103

Yours, etc.,



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